NON-DISCLOSURE AND DATA PROCESSING AGREEMENT

(AI Data Labelling Engagement)

This Non-Disclosure and Data Processing Agreement ("Agreement") is made as of [●]

BETWEEN:

Mydeeptech Technologies Ltd, a company duly incorporated under the laws of the Federal Republic of Nigeria, with its registered address at [●] ("Company")

AND

[Freelancer Full Name], of [Address] ("Annotator")

(Each a "Party" and together the "Parties")

1. Background

The Company engages freelance annotators to perform AI data labelling and related services which require access to confidential, proprietary, and in some cases personal data. This Agreement sets out the obligations governing the use and protection of such information.

2. Definitions

- **"Confidential Information"** means all non-public information disclosed by the Company, including datasets, annotation guidelines, tools, software, models, business processes, and client-related information.
- **"Work Product"** means all annotations, labels, outputs, and deliverables created by the Annotator in the course of engagement.
- **"Personal Data"** shall have the meaning assigned under the Nigeria Data Protection Act 2023, General Data Protection Regulation (GDPR 2018) and other globally accepted standards.

- **"Engagement Period"** means the duration during which the Annotator performs services for the Company.

3. Scope of Engagement

The Annotator shall perform data labelling, tagging, classification, and related services as assigned by the Company.

4. Data Classification

Company Data shall be classified as follows:

- **Public Data** – Information approved for public use.
- **Internal Data** – Non-public information for internal use only.
- **Restricted Data** – Sensitive data requiring strict access control.
- **Highly Sensitive Data** – Critical or regulated data (including Personal Data) requiring the highest level of protection.

The Annotator shall handle all data strictly in accordance with its classification.

5. Confidentiality Obligations

The Annotator shall:

- Keep all Confidential Information strictly confidential;
- Not disclose such information to any third party without prior written consent;
- Use such information solely for the purpose of performing assigned tasks.

6. Permitted Use

Confidential Information shall only be used for fulfilling obligations under this Agreement and for no other purpose.

7. Data Protection and Privacy

The Annotator shall:

- Comply with applicable data protection laws, including the Nigeria Data Protection Act 2023;
- Process Personal Data only on the instructions of the Company;
- Not retain, reuse, or disclose Personal Data beyond the scope of assigned tasks.

8. Security Obligations

The Annotator shall:

- Implement reasonable technical and organizational measures to protect Company Data;
- Use secure devices and maintain confidentiality of access credentials;
- Prevent unauthorized access, copying, or disclosure of data.

9. Platform Access and Use

The Annotator shall:

- Access Company data only through approved platforms or tools;
- Not attempt to bypass system controls or restrictions;
- Not share login credentials or allow unauthorized access.

10. Monitoring and Logging

The Annotator acknowledges that the Company may monitor and record activities on its systems for security, compliance, and quality assurance purposes.

11. Restrictions

The Annotator shall not:

- Copy, download, or store Company Data outside approved systems;
- Use automated tools or scripts without authorization;
- Use Company Data for personal or third-party benefit;
- Train or develop any AI model using Company Data.

12. Intellectual Property

All Work Product shall:

- Be the sole property of the Company or third party partners where the contract was outsourced to the company
- Automatically vest in the Company upon creation;
- Not be used by the Annotator outside this engagement.

13. Return and Deletion of Data

Upon termination or request, the Annotator shall:

- Return all Company materials;
- Permanently delete all copies of Company Data;
- Confirm such deletion in writing.

14. Data Breach Notification

The Annotator shall:

- Notify the Company immediately (and within 24 hours) of any actual or suspected data breach;
- Provide full cooperation in investigation and remediation.

15. Duration and Survival

This Agreement shall remain in effect during the Engagement Period. Confidentiality and data protection obligations shall survive termination.

16. Remedies

The Company shall be entitled to injunctive relief and damages in the event of breach.

17. Indemnity

The Annotator shall indemnify the Company against losses arising from breach of this Agreement.

18. Relationship of Parties

The Annotator is an independent contractor and not an employee, agent, or partner of the Company.

19. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Nigeria.

20. Dispute Resolution

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20.1 **Good Faith Negotiation**

The Parties shall first attempt to resolve any dispute, controversy, or claim arising out of or in connection with this Agreement through good faith negotiations within fourteen (14) days of written notice of the dispute.

20.2 **Mediation**

If the dispute is not resolved through negotiation within twenty-one (21) days, the Parties shall submit the dispute to mediation under the auspices of the Lagos Court of Arbitration or any other mutually agreed mediation body in Nigeria.

20.3 **Arbitration**

Where mediation fails, the dispute shall be finally resolved by arbitration in accordance with the Arbitration and Mediation Act 2023:

- The seat of arbitration shall be Lagos, Nigeria;
- The tribunal shall consist of a single arbitrator (unless otherwise agreed);
- The language of arbitration shall be English;
- The arbitral award shall be final and binding on the Parties.

20.4 **Interim Relief**

Nothing in this clause shall prevent either Party from seeking interim or injunctive relief from a court of competent jurisdiction, particularly in respect of breach of confidentiality or data protection obligations.

20.5 **Continued Performance**

Pending the resolution of any dispute, the Parties shall continue to perform their undisputed obligations under this Agreement.

20.6 **Confidentiality of Proceedings**

All negotiations, mediation, and arbitration proceedings shall be confidential and shall not be disclosed except as required by law or for enforcement of an award.

21. Notices

All notices shall be in writing and delivered via email or registered address.

22. Entire Agreement

This Agreement constitutes the entire understanding between the Parties regarding confidentiality and data protection.

23. Amendment

This Agreement may only be amended in writing signed by both Parties.

24. Severability

If any provision is invalid, the remainder shall remain enforceable.

25. Execution

SIGNED:

For Mydeeptech Technologies Ltd
Name: Seidakumo Josephine Ayo-Bello
Title: Chief Legal Officer
Signature: _____
Date: 14th April,2026

For the Annotator
Name: _____
Signature: _____
Date: _____